

STATE OF NEW YORK

8913--D

IN SENATE

January 15, 2026

Introduced by Sen. COONEY -- read twice and ordered printed, and when printed to be committed to the Committee on Investigations and Government Operations -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the cannabis law, in relation to limiting prohibitions of advertising of cannabis products or services on billboards

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

Section 1. Subdivision 1 of section 86 of the cannabis law is amended to read as follows:

1. The board shall promulgate rules and regulations governing the form and content of advertising and marketing of licensed cannabis and any cannabis products or services in a manner not inconsistent with the provisions of this section.

§ 2. Paragraph (k) of subdivision 2 of section 86 of the cannabis law is amended to read as follows:

(k) is in the form of a billboard that violates the provisions of paragraph (a), (b), (c), (d), (e), (f), (h) or (i) of this subdivision, subdivision two-b of this section, or paragraph (a) or (b) of subdivision three of this section or that includes any cannabis brand information; or

§ 3. Section 86 of the cannabis law is amended by adding two new subdivisions 2-a and 2-b to read as follows:

2-a. For purposes of this section a billboard shall mean any off-premises signage, of any size or any location, as may be defined by local zoning laws and regulations governing the size and location of billboard advertisements.

2-b. (a) No billboard shall be permitted that does not advertise a licensee. A licensee shall not permit the use of their trademarks,

EXPLANATION--Matter in italics (underscored) is new; matter in brackets [-] is old law to be omitted.

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1 brands, names, locations, or other distinguishing characteristics for
2 third-party use on advertising in a manner that does not comply with the
3 provisions of subdivision two of this section.

4 (b) On and after the effective date of this subdivision, any billboard
5 advertising a licensee shall only be permitted to include the following
6 information:

7 (i) The licensee's name, license number, logo, entity name, or doing
8 business as name;

9 (ii) The address, phone number, email address, website URL or QR code
10 for the licensed business;

11 (iii) The nature of the business for which the entity is licensed;

12 (iv) The licensee's business slogan;

13 (v) The hours of operation for the licensed business;

14 (vi) Notice of opening status or an authorized licensee showcase
15 event;

16 (vii) The licensee's social equity status, if applicable to the licen-
17 see;

18 (viii) Directional information to allow a consumer to locate such
19 licensee; and

20 (ix) Any other factual information pertaining to the licensee as
21 promulgated by the board through regulation.

22 (c) Notwithstanding the provisions of this section, no billboards
23 advertising a cannabis licensee shall be permitted to be located within
24 a city with a population of one million or more.

25 § 4. This act shall take effect immediately.